CODE 14 — GENERAL SAFETY OF PERSONS, INFRASTRUCTURE AND TASKS

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Art. 1 — Subject matter, definitions and allocation of competences

1. This Code governs prevention of and protection from the general risks affecting persons, infrastructure, equipment, machinery, tasks and shared living and working environments, within the limits of the competences expressly assigned to it. It also governs the Civic Protection Corps and the blind video surveillance provided for in Articles 17 and 18 of the Constitution and the personal defence provided for in Article 17.9 of the Constitution.

2. For the purposes of this Code:

   a) **general safety** means prevention of and protection from mechanical risks, electrical risks, risks of fire, of structural failure, of work at height, of access to confined spaces, of handling, of the use of equipment and machinery, and from any other risk not expressly assigned to other Codes;

   b) **Safety STV** means the Technical Validation Sheet, adopted in accordance with Article 3-bis of Code 2, that establishes the criteria, parameters, thresholds, assessment methods and minimum measures of general safety;

   c) **General Safety Sheet** means the operational technical document that applies the STVs to a specific activity, machine, item of equipment, worksite, environment or task;

   d) **personal protective equipment (PPE)** means the equipment assigned free of charge to the person where provided for by the General Safety Sheet;

   e) **collective protection** means the device, installation, provision or set of technical measures intended to protect several persons at the same time;

   f) **risk** means the combination of the severity of the potential harm, the probability of its occurrence and the exposure of persons, assessed in accordance with the formula and the parameters established by the Safety STV;

   g) **near miss** means an event that has not caused harm to persons, but that could have caused such harm by reason of the circumstances in which it occurred;

   h) **substantial modification** means a change to the activity, the equipment, the machine, the environment, the task, the organisation or the operating conditions that is capable of altering the level or the nature of the risk;

   i) **vital Common Good** means a Common Good whose destruction, contamination or interruption puts the life or health of persons in concrete and immediate danger, such as drinking water reservoirs and pipelines, the power supply of life-saving care and works that protect against floods and fires; the Civic Protection STV may indicate further examples, which are not exhaustive.

3. The Safety STV classifies risk into the following levels:

   a) **R0 — negligible risk**: requires the application of the general measures of prudence defined by the STV;

   b) **R1 — ordinary risk**: requires a simplified Safety Sheet and information at level L1;

   c) **R2 — significant risk**: requires a full Safety Sheet, specific training and the use of the PPE or collective protections provided for;

   d) **R3 — serious risk**: requires a full Safety Sheet, training at level L2, reinforced attendance or supervision and reinforced periodic inspections;

   e) **R4 — serious and immediate risk**: requires the immediate suspension of the activity concerned and the adoption of urgent corrective measures in accordance with Articles 9 and 10.

4. For the purposes of the allocation of competences:

   a) this Code governs the general safety parameters indicated in paragraph 2, letter a);

   b) ecological risks, biological risks and risks relating to animal welfare are governed by Code 13;

   c) health, clinical, zoonotic, clinical nutrition and pharmaceutical risks are governed by Code 6;

   d) territorial risks, hydrogeological risks and risks relating to land take are dealt with in coordination with Codes 10 and 8, in accordance with their respective competences;

   e) the operational safety of agroecological activities is governed by Code 9, in compliance with the general parameters established by this Code.

5. The classification of a risk or of a measure pursuant to this Article does not transfer the substantive competence assigned to another Code. Where an activity presents risks belonging to several subject matters, each Code retains competence over its own parameters and the Councils concerned shall operate in coordination.

Art. 2 — Principles

1. **Prevention at source.** Every activity, environment or item of equipment shall be designed and organised so as to eliminate the risk or reduce it to the minimum level technically possible.
2. **Proportionality.** Safety measures shall be proportionate to the severity of the potential harm, to the probability of its occurrence, to the level of exposure, to the number of persons exposed and to the competences available.
3. **Operational precaution.** Where there is documented scientific or technical uncertainty as to the compatibility of an activity with general safety, a precautionary measure shall be adopted that is proportionate, effective in relation to the estimated risk and the least invasive among those capable of keeping the risk within the limits established by the STVs in force. The measure shall remain applicable until sufficient elements are available to review the assessment.
4. **Non-commodification.** Any form of rent on essential PPE, on critical collective protections, on life-saving L1 training, on the Safety STVs and on the Safety Sheets in their essential function is prohibited. Essential STVs and Sheets shall not be placed behind a paywall. Access to technical data may be restricted only where their dissemination entails a documented risk to safety; the restriction shall be proportionate and shall not prevent access by those who have an operational need for the data.
5. **Traceability and maintenance.** Machinery, relevant equipment, critical PPE and critical collective protections shall be inventoried and subjected to periodic inspections and documented maintenance in accordance with the applicable STV.
6. **Right of interruption.** Anyone who detects a serious and immediate risk to a person may interrupt the activity concerned and shall report it without delay to the competent Councils. An interruption carried out in good faith shall not give rise to retaliation or detriment.

Art. 3 — Safety Council

1. Each Circle 1 shall establish a Safety Council composed of three to five members with competences of at least level L2 or L3 in one or more of the following subject matters: occupational safety, fire prevention, electrical risk, mechanical risk, building and worksites, organisation of tasks.
2. The members of the Council shall be drawn by lot in accordance with Article 12-bis of Code 3, shall remain in office for one year and shall not be drawn by lot again for the same Council before twelve months have elapsed from the end of their term of office.
3. The Council shall operate with at least two thirds of its members present, rounded up. Proposals and discretionary decisions shall be adopted in accordance with Article 12-bis, paragraph 9, of Code 3, by the consensus method and after publication for at least seventy-two hours. Bound technical acts, opinions and the validation of Safety Sheets shall be adopted by a simple majority of those present, unless this Code or an STV approved in accordance with the competent procedures requires a higher

majority for the validation of critical Safety Sheets. Every meeting shall be minuted and the minutes shall be kept for twenty-four months.

4. In the event of unavailability, conflict of interest or coincidence between the supervisory role and direct operational responsibility for the activity, the member concerned shall declare his or her position and abstain. Replacement shall take place in accordance with Article 12-bis of Code 3. A person who validates a Safety Sheet shall not be the sole person operationally responsible for the activity subject to validation: in that case joint verification by a second, independent L2 or L3 member is required.

5. The Safety Council shall:

   a) keep the register of general risks and the inventory of critical machinery and equipment;

   b) draw up and update the Safety STV, the PPE and Collective Protections STV, the Machinery STV and the Worksites STV;

   c) validate the General Safety Sheets;

   d) give a mandatory opinion on the plans of Codes 9, 10, 12 and 13, limited to the aspects of general safety;

   e) feed the Dependency Register governed by Code 15;

   f) organise the L1, L2 and L3 training within its competence;

   g) coordinate its activity with the Health Council of Code 6, the Biodiversity Council of Code 13, the Habitat and Territory Council of Code 10, the Agroecological Council of Code 9 and the Care Council of Code 12.

6. The mandatory opinions of the Safety Council, where negative, are binding pursuant to Article 8 of Code 3 exclusively as regards the general safety parameters assigned to this Code. They shall not modify or replace health, ecological, territorial or production parameters assigned to other Codes.

Art. 4 — General Safety Sheets, PPE, collective protections and machinery

1. No activity classified R1 or higher may be carried out without a General Safety Sheet in force that applies the relevant STV. Activities classified R0 shall comply with the general measures of prudence established by the STV.

2. Every General Safety Sheet shall contain at least:

   a) the description of the activity, the task, the environment, the machinery and the equipment involved;

   b) the level of risk determined pursuant to Article 1, paragraph 3;

   c) an indication of the risks identified and of the prevention and protection measures;

   d) the list of the PPE and collective protections required;

   e) the level of training necessary;

   f) the operating and emergency procedures;

   g) the date of issue, the version, the person responsible for the issue and the date scheduled for revision;

   h) the circumstances that require an early revision;

   i) the outcome of the last inspection, where one is provided for;

   j) a reversibility plan, where technically applicable.

3. The Sheet shall be validated by the Safety Council. The mandatory opinion of the Health Council is required for the health aspects and that of the Biodiversity Council for the ecological aspects, where relevant. The opinion shall remain confined to the subject matter within the competence of the Council consulted.

4. The Sheet shall be reviewed in the event of a substantial modification and, in any case, within the maximum time limit established by the STV. If the time limit for revision has expired or a substantial modification has occurred that has not been assessed, the Sheet shall not be used to start new activities

or to continue the activity in ways that are no longer assessed. The Council shall identify without delay the temporary measures necessary and, for essential services, shall activate a compliant substitute arrangement where technically possible. The resumption of ordinary activity requires the revalidation of the Sheet in accordance with the applicable procedures and Code 4.

5. PPE and collective protections are safety commons and shall be assigned free of charge where provided for by the Sheet. They shall be subjected to maintenance and recorded in a dedicated register, kept for twelve months. Ownership, responsibility for custody and financing are defined by Code 6 and by the resolutions of the Assembly adopted on a proposal from the Safety Council. The absence of an item of PPE or of a collective protection classified as essential shall entail the immediate suspension of the activity concerned.

6. Every critical machine or item of equipment shall have:

   a) a logbook or equivalent technical documentation;

   b) periodic inspection in accordance with the STV;

   c) documented maintenance;

   d) a register of use, where required by the STV.

   A critical machine or item of equipment without a periodic inspection in force shall not be used.

7. Temporary worksites shall be governed by a specific Safety Sheet that indicates at least the perimeter, the signage, the PPE, the collective protections, the emergency procedures and the evacuation plan.

Art. 5 — Areas of risk

1. **Mechanical risk.** The assessment shall consider at least the guarding of moving parts, the emergency stop devices, the locking and isolation procedures and, where provided for by the STV, the lockout/tagout procedures.

2. **Electrical risk.** The assessment shall consider at least insulation, disconnection, the inspection of installations and the qualification of the persons assigned. Live working is prohibited, except under a specific L3 procedure validated in accordance with the STV.

3. **Fire risk.** The measures shall include, in accordance with the STV, the assessment of the fire load, prevention, escape routes, fire extinguishers, detection and alarm systems, the evacuation plan and periodic drills.

4. **Work at height.** An activity is considered work at height where there is a risk of falling from one level to another. Where the difference in level exceeds two metres with respect to a stable level, or where the STV so prescribes by reason of the specific risk, the minimum collective protection measures and the fall-arrest PPE established by the STV are mandatory.

5. **Confined spaces.** Access to a confined space requires at least an entry permit, the testing of the atmosphere and of gases, ventilation where necessary, continuous external attendance, recovery equipment and a specific Sheet for risk R3 or higher.

6. **Other risks.** For the handling of loads, noise, vibrations, non-pharmaceutical chemical agents and further sources of risk, the STV shall define the thresholds, the preventive and protective measures and the inspections necessary. For the health aspects, coordination with the Health Council of Code 6 is required, without transferring to the latter competence over the general safety parameters.

Art. 6 — Training

1. L1 training in basic safety and life-saving first response is mandatory for access to activities classified R1 or higher and, as regards the aspects of general safety, to sanctuaries, worksites, workshops and critical storehouses.

2. L2 training is required for R3 activities and for the functions of operational attendance or supervision identified by the STV.

3. L3 training is required for the functions of designing the STVs, validating critical Safety Sheets and second-level audit.

4. Life-saving L1 training is free of charge and shall not be made subject to a paywall. Training shall be recorded in accordance with Code 7, Article 2.2, with access only to the data necessary to verify that it has taken place and that it is valid.

Art. 7 — Measurement, accidents and near misses

1. Measurement and the collection of data are permitted exclusively in order to prevent risks, verify the effectiveness of the measures and protect general safety. The data shall be processed in aggregate and non-profiling form, in accordance with Code 7, Article 2.2, and kept for the minimum period established by the STV.

2. The following are established:

   a) a **confidential operational register**, containing the data necessary for the analysis of causes, including identifying data where indispensable. Access is reserved to the competent Councils and retention shall not exceed thirty-six months, except in the case of a documented need connected with ongoing proceedings;

   b) an **aggregate public register**, which contains non-nominative data used for learning and federated prevention.

3. For every serious accident or accident classified R4, the Safety Council shall carry out an analysis of causes within seven days and shall adopt, within the scope of its competences, reasoned corrective technical measures. Where the analysis cannot be concluded within that time limit owing to a lack of data or the need for external competences, an interim report shall be drawn up within seven days, identifying the immediate precautionary measures and setting a final time limit for the analysis, as a rule not exceeding a further fourteen days.

4. The technical measures adopted pursuant to paragraph 3 do not replace the findings, the remedies or the guarantee procedures governed by Code 4.

5. The possibility of reporting near misses anonymously is guaranteed. A person who reports in good faith shall not suffer retaliation or detriment.

Art. 8 — Safety Dependency Register

1. The Safety Council shall feed the Dependency Register governed by Code 15, distinguishing at least:

   a) **competence dependencies**, relating to the unavailability in the Basin of the L2 or L3 competences necessary in matters of safety;

   b) **material or technological dependencies**, relating to the unavailability of critical PPE, collective protections, inspection equipment, diagnostic instruments or essential technical materials;

   c) **dependencies on external services**, relating to the unavailability of inspections or certifications that cannot be carried out internally.

2. For every critical dependency an exit plan shall be prepared, indicating the objective, the person responsible, the definite final time limit and the intermediate risk-reduction measures. The plan shall be approved by the Assembly on a proposal from the Safety Council, after obtaining the opinion of the other competent Councils where the dependency also concerns their subject matters.

3. If overcoming the dependency within the time limit laid down is not realistically possible owing to a documented technical impossibility, the Council shall submit a reasoned review to the Assembly. The review shall indicate the new time limit proposed, the reasons for the impossibility and the compensatory measures necessary to contain the risk.

4. At least one annual federated audit of the autonomy of safety shall be carried out, entrusted to independent L3 members drawn by lot in accordance with Article 36 of Code 4.

Art. 8-bis — Civic Protection Corps

1. The Civic Protection Corps is the temporary, unarmed and non-violent civic function provided for in Article 17 of the Constitution. It is neither a police force nor a permanent body. It is activated by Circle 1 or, for supra-local functions, by Circle 2 and is answerable to the Circle that activated it. For supra-local functions, and for an associated Community that has no Corps, Circle 2 activates the members on duty in the nearest Communities; urgent activation is communicated to their Assemblies, which are answerable for it pursuant to paragraph 6. Activation for scheduled interventions, including for a specified service or period, shall be resolved by the Assembly of Circle 1 or, for supra-local functions, by the General Assembly. In case of urgency, the intervention shall be initiated by the reference person on duty of paragraph 5 or, if that person cannot be reached in time, by a member on duty, at the call of anyone or on their own initiative, and shall be communicated without delay to the Circle; the review and validation of Article 8-quater, paragraph 2, count as ratification of the urgent activation.
2. The Corps shall perform, with rotation among its members, the following functions:
    a) Technical Rescue and Firefighting;
    b) Civil and Environmental Protection;
    c) Protection of the Commons;
    d) Mediation and Non-Violent Containment;
    e) Community Medical and Veterinary Rescue.
3. The members of the Corps shall be drawn by lot from among the volunteers who have completed the training in non-violent mediation, de-escalation, rescue and confederal law defined by the Civic Protection STV, validated in accordance with Code 5, and whom the Assembly has declared suitable. Every person drawn by lot may refuse. Only persons who have reached eighteen years of age are drawn by lot; persons aged sixteen or over may take part alongside the members, without containment or use of force, pursuant to Article 8-sexies, paragraph 12.
4. A turn of service shall not exceed ninety days and shall not be renewable consecutively. A person who has served a turn shall not take up coordination offices in the following twelve months, pursuant to Article 17.7 of the Constitution. The time of the turn of service shall be counted towards the CBO.
5. The Safety Council shall be responsible for the training, the equipment and the Safety Sheets for interventions. It shall not direct interventions and shall not have the Corps at its disposal. Every intervention shall be coordinated by a reference person on duty, identified by rotation among the members of the Corps.
6. The Assembly may revoke the mandate or dissolve the Corps at any time.

Art. 8-ter — Equipment and rules of intervention

1. The equipment is limited to instruments for personal protection, for non-injurious neutralisation, for technical rescue and for communication. Firearms, weapons of war and instruments of torture or of injurious coercion are prohibited. The Civic Protection STV shall list exhaustively the instruments permitted and shall be adopted with the mandatory opinion of the Health Council.
2. Containment interventions shall be based on de-escalation, interposition and non-injurious immobilisation and shall last for the time strictly necessary to bring to an end a present danger to the physical safety of persons or ongoing ill-treatment that endangers the life of an animal or causes it severe suffering. The use of force beyond what is strictly necessary constitutes a Grade 4 offence.
3. The Corps shall not carry out investigations, shall not conduct surveillance and shall not gather information on persons. It shall not enter a Circle 0, unless this is strictly necessary to provide rescue or to bring to an end a present danger to the life or to the physical or sexual integrity of a person. It may also enter it, even without the consent of those who live there, where this is strictly necessary to bring to an end ongoing ill-treatment that endangers the life of an animal or causes it severe suffering, pursuant to Articles 1.1, 5.1, letter a), and 13 of the Constitution; the intervention shall be carried out, where

possible, by members assigned to the Community Medical and Veterinary Rescue function, shall be limited to ending the ill-treatment and rescuing the animal and shall be communicated to the Biodiversity Council, which shall act pursuant to Article 7, paragraph 3-bis, of Code 13. The entry shall be communicated immediately to the Guarantee Tribunal and shall be subject to the validation within twenty-four hours provided for by Article 34, paragraphs 2 and 2-bis, of Code 4. Outside these cases the Corps shall enter a Circle 0 only with the reasoned authorisation of the Guarantee Tribunal, in order to carry out a protection measure ordered in accordance with Code 4 or Code 12, where this is strictly necessary for the protection of the inviolable rights of a person.

4. Every restriction of a person's freedom of movement shall be communicated without delay to the Guarantee Tribunal and shall be subject to the validation within twenty-four hours provided for in Article 34 of Code 4. For persons in acute crisis and for health isolation and quarantine, only the validation provided for, respectively, by Article 8, paragraph 7, and by Article 2-bis, paragraph 3-quater, of Code 6 applies. The review of the activation provided for by Article 8-quater, paragraph 2, remains unaffected in every case.

5. For persons in acute crisis the non-coercive protocol of Article 8 of Code 6 shall apply. For minors and frail persons Code 12 shall apply.

6. In the event of external aggression the Corps shall coordinate the non-violent civil defence provided for in Article 16.4 of the Constitution: interposition, non-cooperation, protection and evacuation of persons. The use of weapons remains prohibited.

Art. 8-quater — Recording, review and validation of interventions

1. Every intervention shall be recorded in full, with respect for the rights of the persons involved. The recordings shall be encrypted and processed in accordance with Code 7.

2. Every activation of the Corps, including every intervention carried out under an activation for a service or a period, shall be subject to review within twenty-four hours and to validation by two neighbouring Communities unconnected with the event, pursuant to Article 17.6 of the Constitution. Each Community shall designate three persons by sortition. The review shall be carried out by the six persons so designated, who shall examine the recording of the intervention and hear the reference person on duty and, if they so request, the person subject to the intervention. The activation is validated if it is approved by the majority of the persons designated by each of the two Communities. If the review is not concluded within the time limit, the activation shall be deemed not validated pursuant to paragraph 4.

3. The recordings shall be published within forty-eight hours in an inspectable form. Data identifying the person subject to the intervention, injured persons, minors and uninvolved third parties shall be redacted. The full version is accessible only to the persons responsible for the review and validation of paragraph 2, to the Guarantee Tribunal and to the other bodies of Code 4 competent for the fact and, for the part concerning them, to the person subject to the intervention. Access to the full version is logged in accordance with Code 7.

4. Failure to validate shall cause the effects of the intervention to cease and shall be reported to the Guarantee Circle for the assessments under Code 4.

5. Every quarter an aggregate report shall be published on the interventions, on the use of force and on the outcomes of the validations.

Art. 8-quinquies — Blind video surveillance, containment and transitional regime

1. Video surveillance of public spaces is permitted exclusively in the blind and reversible form of Article 18.3 of the Constitution. Installation shall be resolved by the Assembly with a Dossier and requires an STV and the binding opinion of the Network Council on the data-processing aspects.

2. The streams shall be encrypted with a split key and automatically overwritten after seventy-two hours. The fragments of the key shall be held in custody by at least three distinct parties: the Guarantee Circle

and two neighbouring Communities. No party may reconstruct the key alone.

3. Decryption is permitted only after a serious event that has harmed the physical safety of persons or the Commons, at the reasoned request of Circle 1 and with the validation of two neighbouring Communities unconnected with the event, pursuant to Article 18.4 of the Constitution. It shall be limited to the place and the time of the event. Every access shall be recorded and inspectable; data that are not relevant shall be destroyed without delay.

4. Biometric recognition, audio surveillance, predictive analysis of behaviour and private video surveillance directed at public spaces or Commons remain prohibited.

5. Surveillance of the perimeter of the Containment Communities provided for in Article 32 of Code 4 shall be carried out by the Corps in accordance with this Code, without weapons and with recording of the interventions.

6. Until the completion of the transition, the Corps shall perform functions of rescue, civil protection and mediation. Every physical intervention on persons and every entry into a Circle 0 without the consent of those who live there shall be limited to what is permitted by the law in force; for every serious danger, including to an animal, the emergency services and the competent authorities shall be alerted. Article 37 of Code 4 shall apply.

Art. 8-sexies — Personal defence and help for persons under attack

1. In implementation of Article 17.9 of the Constitution, every person may defend themselves and other persons against an ongoing aggression against physical or sexual integrity, where the Civic Protection Corps is not present or cannot intervene in time. An aggression is ongoing also when it is imminent, that is when it is about to be carried out and the danger is concrete and immediate; the fear that it might happen is not enough. The aggression remains ongoing until it has ceased.

2. The following are permitted, choosing among those sufficient to protect the persons the least harmful:

   a) getting away from the aggression and bringing the threatened persons to safety, including by moving them away from the place;

   b) calling for help, raising the alarm and calling the Civic Protection Corps;

   c) interposing oneself between the aggressor and the person attacked;

   d) using the physical force strictly necessary and proportionate to bring the aggression to an end, without injuring beyond what is needed to end it;

   e) holding the aggressor by means of non-injurious immobilisation, without compressing their neck or chest, until the danger has ceased or, if this happens earlier, until the Civic Protection Corps arrives.

3. The choice shall be assessed according to the circumstances as they appeared to the person who acted at the time of the fact. Getting away is not required where it would expose oneself or others to danger or would leave a person under attack without protection. Where the aggressor is a minor, a person in acute crisis or a person who is unable to understand what they are doing, bringing to safety and interposition shall be preferred and the force shall be commensurate also with their age and condition; when the Corps arrives, Article 8-ter, paragraph 5, and Article 8 of Code 6 shall apply.

4. The defence is unarmed, pursuant to Article 16 of the Constitution. The use of weapons or of instruments intended to strike or to injure is never permitted. Ordinary objects found on the spot may always be used for shielding oneself, without striking. To strike, they may be used only where the aggression endangers life, exposes a person to serious injury or is sexual violence, only to bring it to an end and to the extent strictly necessary. No one may carry instruments for the purpose of using them against persons. The Civic Protection STV may indicate non-injurious personal alarm and protection devices.

5. The following do not constitute defence and are classified in accordance with Article 26 of Code 4:

   a) an attack against a person who has not begun an aggression and is not about to carry one out within the meaning of paragraph 1, including the use of force out of the mere fear of a future aggression;

b) revenge and punishment;

c) the use of force after the danger has ceased, without prejudice to the excusable error provided for by Article 26-bis, paragraph 2, of Code 4;

d) the use of force to correct, educate or discipline a person, to impose a decision on them or to prevent them from leaving a place or a Circle 0, from communicating or from seeking help, without prejudice to the holding of the aggressor provided for by paragraph 2, letter e), and without prejudice to the minimal and momentary gesture necessary to remove a minor or a person who is unable to protect themselves from an immediate danger, in accordance with Code 12;

e) the reaction to insults, provocations, refusals or disobedience that do not endanger physical or sexual integrity;

f) the use of force against a person who is in turn defending themselves within the limits of this Article.

6. A person who began the aggression may not invoke defence against force used within the limits of this Article to bring it to an end. They may invoke it only against a use of force which, beyond those limits, endangers their life or their physical or sexual integrity.

7. To protect property, including the Commons, only interposition, the making safe of the good or of the instrument where this is possible without force on the person, the alarm and the call to the Civic Protection Corps for the function of Protection of the Commons are permitted. The use of force on persons is not permitted. However, the ongoing destruction, contamination or putting out of service of a vital Common Good within the meaning of Article 1, paragraph 2, letter i), constitutes an aggression against physical integrity within the meaning of paragraph 1 where it results in a concrete and immediate danger to the life or health of persons. In this case only interposition, physically moving the person away from the good and the holding of paragraph 2, letter e), are permitted, without striking and without using objects. Demonstrative actions or acts of disobedience that do not give rise to such a danger do not fall within this case.

8. Animals are not property, pursuant to Article 13.1 of the Constitution. Every person may defend an animal against ongoing ill-treatment, that is against violence that injures it or makes it suffer, with the means of paragraph 2 and under the same rules of necessity and proportionality laid down for the defence of persons by paragraphs 2, 3, 4, 5 and 6; for the purposes of paragraph 4, what counts is the danger to the life of the animal or of serious injury to the animal. Force is permitted only to bring the ill-treatment to an end, not to prevent future ill-treatment, to remove the animal permanently from those who care for it or to punish. Disagreements on how to feed, care for, keep or train an animal do not justify the use of force: they shall be reported to the Biodiversity Council, which shall act pursuant to Article 7, paragraphs 2 and 3, of Code 13. Ill-treatment shall also be reported to the Biodiversity Council, pursuant to Article 10, paragraph 2, of Code 13. The defence of an animal does not allow entry into a Circle 0 without the consent of those who live there: anyone who witnesses ongoing ill-treatment in the Circle 0 that endangers the life of the animal or causes it severe suffering shall call the Civic Protection Corps, which may enter pursuant to Article 8-ter, paragraph 3; ongoing ill-treatment in the Circle 0 shall in any case be reported without delay to the Biodiversity Council and to the Guarantee Circle. Against an animal that attacks a person, there are permitted, by degrees and choosing the least harmful means that is sufficient, bringing persons to safety, driving the animal away and the force strictly necessary to end the danger; killing the animal is permitted only when there is no other way to save a life or to prevent serious injury. By the same degrees an animal attacked by another animal may be protected, without killing the attacking animal; for wildlife, Article 5-bis of Code 13 also applies. The fact shall be reported pursuant to paragraph 10 and to the Biodiversity Council.

9. For the purposes of defence, a person who does not live there may enter a Circle 0 without the consent of those who live there only to bring to an end ongoing physical or sexual violence against a person, as an intervention strictly necessary for the protection of inviolable rights pursuant to Article 5.1, letter a), of the Constitution; a danger that is only imminent is not enough. The consent of one person who lives there is sufficient, including consent expressed only by a request for help; the refusal of the person committing the violence does not count. A person who does not live there may also enter to give urgent assistance to a person whose life is in danger, when the Civic Protection Corps cannot arrive in time.

The person who enters, including at a request for help, shall immediately notify the Civic Protection Corps or, if it cannot be reached, the Guarantee Circle, including through others, as soon as they can do so without leaving the person in danger; if neither can be reached, they shall call the emergency services and notify the Guarantee Circle as soon as possible. They shall leave as soon as the danger has ceased. The Corps or the Guarantee Circle shall transmit the notice without delay to the Guarantee Tribunal, which shall review the entry within twenty-four hours, as for the entry of the Corps provided for by Article 8-ter, paragraph 3, in accordance with Article 26-bis, paragraph 5, letter e), of Code 4. When the Corps arrives, Article 8-ter, paragraph 3, shall apply to the entry and presence of its members.

10. After the fact, a person who has used force, has held a person or has entered a Circle 0:

    a) shall provide or call for rescue for anyone who is injured, including the aggressor;

    b) shall report the fact without delay to the Civic Protection Corps or to the Guarantee Circle, stating the place, the persons involved and the need for rescue. The Corps shall transmit the report to the Guarantee Circle and shall not carry out investigations, pursuant to Article 8-ter, paragraph 3. Where force has been used by or against a member of the Corps, the report shall be made to the Guarantee Circle.

    The report does not oblige the person to make other statements about the fact; Article 25, paragraph 3, of Code 4 shall apply. Failure to report does not in itself constitute an offence or an admission, except for the notice of entry into a Circle 0 provided for by paragraph 9. The assessment follows Article 26-bis of Code 4.

11. Containment carried out by the Civic Protection Corps within the limits of Article 8-ter does not constitute aggression, even when the person contained considers it unjust: no defence is permitted against it and the containment is challenged through the review and validation provided for by Article 8-quater and by Article 34 of Code 4. Where a member of the Corps uses force beyond the limits of Article 8-ter, paragraph 2, endangering the life or the physical or sexual integrity of a person, this Article applies: anyone may interpose themselves and defend the person, and the other members present are required to interpose themselves. Article 8-ter and Article 17.5 of the Constitution, not paragraphs 2 and 3 of Article 26-bis of Code 4, apply to members of the Corps who use force during their term of service.

12. No one is required to use force or to expose themselves to danger, and no one may ask a minor to intervene with force. A person who witnesses an aggression and can do so without danger shall call the Civic Protection Corps or raise the alarm. Minors may defend themselves and defend other persons within the limits of this Article; Article 26-bis, paragraph 7, of Code 4 applies to the facts they commit.

13. Until the completion of the transition, personal defence is governed by the law in force, pursuant to Article 38.6 of the Constitution, and Article 37 of Code 4 shall apply. Those who have joined undertake to remain within the limits of this Article even where the law in force would allow more, in particular not to use weapons. This Article does not entail the waiver of rights or guarantees under the law in force and may not prevent or delay recourse to the authorities: a person who is attacked may always call the emergency services and the competent authorities, and those who help them shall support them in doing so; a person who has used force shall call the emergency services where there are injured persons, in addition to making the report of paragraph 10. The reporting and complaint obligations of Article 37, paragraph 2, of Code 4 remain unaffected; otherwise, not having recourse to the authorities does not constitute an offence. The holding of paragraph 2, letter e), and the entry of paragraph 9 are permitted only within the limits allowed by the law in force.

Art. 9 — Prohibitions, violations and guarantees

1. It is prohibited to:

    a) carry out an activity classified R1 or higher without a General Safety Sheet in force;

    b) tamper with, remove or render ineffective guards, PPE, collective protections, signage or emergency stop devices;

    c) impose a paywall on the essential Safety STVs, on the essential Safety Sheets or on life-saving L1

training;

d) use critical machinery or equipment without a periodic inspection in force;

e) transfer to parties external to the Confederation the functional control of the safety system, of the register of risks or of the storehouse of critical PPE;

f) carry out retaliation against anyone who interrupts an activity or reports in good faith a serious and immediate risk.

2. Violations are classified as follows:

a) **critical violation**: entails a serious and immediate R4 risk and requires the immediate and proportionate suspension of the activity until acceptable conditions are restored;

b) **substantial violation**: significantly compromises the safety system without giving rise to an immediate R4 risk. A time limit for compliance of not less than seven and not more than thirty days shall be assigned, unless the risk requires more rapid measures;

c) **ordinary violation**: consists of a formal or documentary irregularity without immediate risk. A prescription shall be issued with a time limit for correction defined by the STV, as a rule not exceeding thirty days.

3. The ascertainment of violations, the application of precautionary measures, the suspension or deactivation of activities and the remedies are governed by Code 4. Technical measures shall be reasoned and proportionate to the risk; the relevant acts shall identify the condition to be restored and the time limit for verification.

4. Where the activity concerned guarantees services of levels 1 and 2 of the Basket, the suspension or deactivation shall be accompanied, where technically possible, by the activation of a compliant substitute function. This is without prejudice to the urgent measures necessary to deal with a serious danger, in accordance with Codes 4 and 14.

5. An appeal to the Guarantee may be lodged in accordance with Code 4 within fourteen days of the communication of the decision or of actual knowledge of the violation. It may concern procedural defects, manifest technical unreasonableness, discrimination or disproportion. The appeal shall not automatically suspend the urgent measures necessary to prevent serious and immediate harm.

Art. 10 — Transitional provisions, coordination and precedence

1. This Code is coordinated with:

a) the Constitution, Articles 3.1, 5.1, 13, 16, 17, 18 and 32;

b) Code 1, Articles 27 and 32;

c) Codes 2, 3, 4, 5 and 6 for their respective subject matters;

d) Code 7, Article 2.2, for the processing of data;

e) Codes 8 and 9 for water, agroecological activities and production;

f) Code C.1-Annex A for the aspects of production within its competence;

g) Codes 10, 12, 13 and 15 for territory, care, biodiversity and the Dependency Register.

2. Within six months of entry into force, each Circle 1 shall inventory:

a) the existing general risks;

b) the critical machinery and equipment;

c) the critical PPE and collective protections;

d) the worksites in progress;

e) the competences available in matters of safety.

3. Within twelve months of entry into force, each Circle 1 shall activate:

a) the Safety Council;

b) the minimum Safety STV;

c) the minimum STV for PPE and collective protections;

d) the minimum Machinery STV;

e) the minimum Worksites STV;

f) the Safety Sheets necessary;

g) the node of the federated safety network;

h) the register of accidents and near misses.

4. In the event of a documented overlap of the transitional burdens relating to Codes 9, 10, 13 and 14, the Assembly may grant a reasoned extension not exceeding six months. The extension shall be accompanied by a binding plan with activities, persons responsible and intermediate deadlines and shall not interrupt the essential functions of the Basket.

5. Activities existing on the date of entry into force shall be subject to a conformity check in accordance with the procedures of Code 4. For non-compliant activities:

a) the Safety Council shall carry out the technical assessment and document the deficiencies;

b) except in the case of serious and immediate risk, a time limit for compliance of not less than thirty days shall be assigned;

c) in the presence of an R4 risk the immediate and proportionate suspension of the activity may be ordered;

d) the compliance plan shall indicate the measures to be adopted and a definite final time limit, as a rule not exceeding ninety days;

e) if compliance is technically impossible, the deactivation procedure provided for by Code 4 shall be initiated, on a proposal from the competent Council and with a substitute plan;

f) if the activity guarantees services of levels 1 and 2 of the Basket, deactivation shall take place after the activation of the compliant substitute function, except in the case of a safety emergency governed by Codes 4 and 14.

6. In the event of overlap, precedence is limited to the subject matters expressly assigned:

a) Code 14 prevails as regards the general safety parameters of persons, infrastructure and tasks;

b) Code 6 prevails as regards health and zoonotic risks, clinical nutrition and pharmaceutical matters;

c) Code 13 prevails as regards ecological parameters, biodiversity, animal welfare and biological functionality;

d) Code 10 prevails as regards intended use, siting, land take, the Land Register and territorial constraints;

e) Code 9 prevails as regards agroecological use, crops, the technical management of pollinator refuges and the food requirement;

f) Code 8 prevails as regards the functional management of water.

7. Where the same activity presents aspects belonging to several competences, each Code retains ownership of the parameters assigned to it. The competent Councils shall coordinate in order to prepare an integrated Safety Sheet that incorporates the binding parameters of each subject matter. Coordination does not transfer ownership of the competences.

8. No precedence clause may be interpreted as a transfer of competences not expressly assigned.